

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
CIVIL DIVISION

CHRISTOPHER HANSON,
Plaintiff/Petitioner,

vs.

CASE NO.: 25-CA-10255
DIVISION: "B"

THIRTEENTH JUDICIAL CIRCUIT COURT
CLERK OF THE THIRTEENTH JUDICIAL CIRCUIT,
CHIEF JUDGE CHRISTOPHER C.
SABELLA, JUDGE KELLY AYERS, GINA
JUSTICE (or current court administrator), MIKE
MOORE,
Defendants/Respondents.

_____ /

Verified motion to disqualify all 13th Judicial Circuit Judges and for reassignment to a neutral circuit Pursuant to § 38.10, Fla. Stat.; Fla. R. Gen. Prac. & Jud. Admin. 2.160; and Canon 3E(1)

Introduction and procedural posture

1. This is an original circuit court action under Chapter 119, Florida Statutes, and Article I, Section 24 of the Florida Constitution, seeking a writ of mandamus to compel production of unlawfully withheld public records, declaratory relief, and attorney's fees and costs, directly impacting Plaintiff and his minor children in Case No. 24-DR-001150.
2. The withheld records concern a yearlong pattern of severe misconduct and systemic corruption. Plaintiff seeks documentation including that related to judicial communications, scheduling, recusal, hearing videos, and related materials likely to produce further evidence of and explanation for the bias, corruption, and misconduct within the Thirteenth Judicial Circuit throughout the proceedings in Case No. 24-DR-001150.

3. On October 15, 2025, this Court entered an order transferring this case to the Second District Court of Appeal. On October 16, 2025, the Court vacated that transfer order. The Court has indicated it believes it lacks jurisdiction to consider any claim against another judge in this circuit but will retain the case because nonjudicial respondents are named.
4. The barrier presented here is not subject-matter jurisdiction; it is an institutional conflict of interest. The proper remedy is disqualification of all Thirteenth Judicial Circuit judges and reassignment to a neutral circuit.

Legal basis for disqualification and reassignment

5. Section 38.10, Florida Statutes, requires disqualification where a party fears they will not receive a fair trial due to bias or interest. Rule 2.160(f) mandates that a legally sufficient motion be granted immediately, with no further action taken by the disqualified judge. Canon 3E(1) requires disqualification where impartiality might reasonably be questioned.
6. A circuit-wide institutional conflict arises where the court itself is a named defendant, sitting judges (including the Chief Judge) are parties, and the litigation challenges the administrative integrity and conduct of circuit personnel. In such circumstances, reassignment outside the circuit is functionally mandatory to preserve due process and public confidence.
7. There is an institutional due process problem with respect to the 13th Circuit's handling of any litigation involving the undersigned either as a party or as an attorney.
8. Pursuant to Walls v. State, 910 So. 2d 432 (Fla. 4th DCA 2005), and Mulligan v. Mulligan, 877 So. 2d 791 (Fla. 4th DCA 2004), disqualification of a judge in one matter due to bias, conflict, or the appearance of impropriety extends broadly to related or

interconnected proceedings involving the same parties, attorneys, or institutional interests, ensuring the preservation of due process and public confidence in the judiciary.

9. In Walls, the Fourth District Court of Appeal granted a writ of prohibition disqualifying a trial judge in a criminal case where the judge had previously recused herself in an unrelated pending matter involving the same defendant, holding that such prior recusal created legally sufficient grounds for disqualification to avoid any reasonable fear of partiality.
10. Similarly, in Mulligan, the court mandated disqualification across all cases involving a specific attorney after the judge recused in one instance due to a personal conflict with that attorney, emphasizing that recusal in a single case necessitates removal from any related or ongoing matters to prevent systemic bias.
11. Here, the institutional entanglement and conflicts inherent in this public records action—where the Thirteenth Judicial Circuit itself, its Chief Judge, and other judges are named defendants accused of misconduct, bias, and concealment directly tied to the underlying family law proceedings in Case No. 24-DR-001150, create an irreconcilable appearance of impropriety for all judges within the circuit. This requires disqualification not only in this case but also in the related family law matter to uphold the integrity of the judicial process.

Factual background

12. Between July 24, 2025 and September 4, 2025, Plaintiff submitted multiple public records requests to the Thirteenth Judicial Circuit and the Clerk, seeking judicial disqualification and recusal records, administrative communications concerning the GAL issue, transcripts referenced in public proceedings, emails and texts of Judges Kelly Ayers

and Wendy DePaul and their judicial assistants related to scheduling and objections, and visual and audio recordings of specified hearings.

13. Despite statutory deadlines and persistent follow-up, Defendants failed to produce requested records, provide lawful justifications, or respond to specific inquiries. Partial responses from Court Administrator Gina Justice on August 21, September 4, and September 8, 2025 acknowledged the existence of responsive records but asserted exemptions and demanded payment without full production. The Court uniformly failed to respond as to what devices were searched as part of the response process. Communications related to the hearings and issues with extreme bias concerns were conspicuously absent from the responses.
14. The September 8, 2025 response specifically denied access to the April 4, 2025 hearing video based on confidentiality claims, despite Judge Ayers referencing and offering the video on the record, raising concerns of inconsistent treatment and concealment efforts once her threat to produce the video did not produce the result she hoped.
15. Plaintiff exhausted informal remedies and administrative channels with follow-ups on August 26, August 31, September 9, September 12, September 24, and October 9, 2025. There were no substantive responses following September 9, 2025 beyond an acknowledgment from Mike Moore, constituting constructive denial and evidence of bad faith.
16. Specific failures include: no affidavits describing search methods or devices (including personal devices); no explanation for the lack of communications regarding the December 13, 2024 and January 9, 2025 hearings; no clarification as to the existence of “security” video only for April 4, 2025 (Docket #198), whether the camera is part of a

security system, and why no similar footage exists for other hearings; refusal to provide information by email and reliance on U.S. Mail to delay access; and no written explanations with specific statutory citations for any withholdings.

17. Defendants' non-response to targeted inquiries, coupled with partial responses and the absurd bias and results in the related family law case, reveal bias and a "clubhouse" rules protection pattern among circuit insiders, violating Florida public records law. This obstruction has caused ongoing harm to Plaintiff and his family, including escalating damage to the children and Plaintiff's health.

18. The pattern of delays, non-responses, and incomplete disclosures appears designed to protect Judge Ayers and avoid production of evidence that could result in embarrassment or discipline. The underlying family case hinges on Husband's financial discovery efforts in the face of Wife's concealment of marital assets; court actions have assisted obstruction and suppressed evidence of ethical misconduct by multiple attorneys.

19. Exhibits attached to the Petition and prior filings include: composite requests; Gina Justice's letters; the September 8, 2025 video denial; April 4, 2025 transcript excerpts documenting the court's acknowledgment of video; the October 9, 2025 email chain to Mike Moore; and correspondence to Chief Judge Sabella detailing non-responses.

(Docket #6).

Clarification regarding prior transfer order and Escambia County

20. The vacated transfer order cited § 26.012, *Dept. of Com'ty Affrs. v. Escambia Cnty.*, 582 So. 2d 1237, 1239 (Fla. 1st DCA 1991). *Escambia* involved a jurisdictional framework where circuit court review of certain quasi-judicial actions was barred; it did not involve the circuit itself as a party nor an institutional conflict necessitating disqualification. Here,

other circuits have jurisdiction to hear a mandamus action compelling ministerial public records duties; the impediment is local judicial conflict, not a statewide jurisdictional bar.

Verified declaration

21. I, Christopher Hanson, declare under penalty of perjury that the statements made herein and those from the Verified Petition and corresponding Exhibit Composite (Docket #3, 6), all incorporated here by reference, are true and correct to the best of my knowledge.

Relief requested

22. Disqualify all judges of the Thirteenth Judicial Circuit from presiding over this case and the related case, Case No. 24-DR-001150, based on *Walls* and *Mulligan*.

23. Request administrative reassignment by this Court, the 13th Circuit's Chief Judge, and/or the Chief Justice of the Florida Supreme Court to a neutral judge in another circuit (e.g., the Tenth Judicial Circuit, Polk County).

24. Maintain the case in circuit court jurisdiction, consistent with Article V, § 5(b), Florida Constitution, and § 26.012, Florida Statutes, and proceed under Rule 2.160(f) with immediate disqualification and no further action by any conflicted judge.

25. Award attorney's fees and costs under § 119.12, Florida Statutes, and grant such other relief as is just and proper.

Certified and executed on October 31, 2025,

/s/ Christopher Hanson
Christopher Hanson, Esq.
Florida Bar No. 44094
cahanson77@yahoo.com |
727-409-5738

Certificate of Service

I HEREBY CERTIFY that a true and correct copy of the foregoing Verified Motion to Disqualify All 13th Judicial Circuit Judges and for Reassignment to a Neutral Circuit, along with all accompanying exhibits (if any), was filed through the Florida Courts E-Filing Portal and service attempted via the Portal's e-service system on October 31, 2025, (with additional email service directly from Plaintiff) to the following recipients: Clerk of Court for the 13th Judicial Circuit at info@hillsclerk.com 13th Judicial Circuit Court at rowlanda@fljud13.org, TCA@fljud13.org, as Court Administrator per email from Gina Justice who left her employment at the 13th Circuit, Mike Moore, Public Information Officer, mike.moore@fljud13.org Judge Kelly Ayers at famlawdivd@fljud.org Judge Christopher Sabella at cornelcm@fljud13.org.

/s/ Christopher Hanson

Christopher Hanson, Esq.

Florida Bar No. 44094

cahanson77@yahoo.com (<mailto:cahanson77@yahoo.com>)

727-409-5738